

M/S Matrumal Dhannalal Oil Mill v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 November 2015 · Writ-C No. 61310 of 2015 · **Writ disposed; EE to decide 4.20(i) interest representation**

HEADNOTE

A consumer's remaining claim for interest on security at the RBI bank rate under clause 4.20(i) of the Electricity Supply Code, 2005, after excess security had already been adjusted under clause 4.20(g), was not decided on merits. The Division Bench directed the Executive Engineer, Hathras, to consider and decide the pending representation by a reasoned speaking order, preferably within one month, because the issue required investigation of facts.

FACTUAL SUMMARY

The petitioner oil mill sought a writ for adjustment of excess security of Rs.11,75,818/- and for credit of interest on security for 2014-15 at the RBI bank rate. Counsel stated the first relief was infructuous, the excess having been adjusted under clause 4.20(g) of the Electricity Supply Code, 2005. Only the claim for interest under clause 4.20(i) survived. A representation dated 4 April 2015 was already pending before the Executive Engineer, Electricity Distribution Division, Hathras.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

interest on security deposit

HOLDING

Where the surviving writ claim is credit of interest on security at the RBI bank rate under clause 4.20(i) and a representation is already pending, the High Court will not decide the claim if it requires investigation of facts, and will instead direct the Executive Engineer to consider and decide the representation in accordance with law by a reasoned speaking order. ¶ 1

PRINCIPLE TAGS

s47-4-interest-on-security-at-bank-rate-from-enactment A consumer's remaining claim for interest on security at the RBI bank rate under clause 4.20(i) of the Electricity Supply Code, 2005, after excess security had already been adjusted under clause 4.20(g), was not decided on merits.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INTEREST ON SECURITY FOR FINANCIAL YEAR 2014-15 IS PAYABLE AT THE RBI BANK RATE UNDER CLAUSE 4.20(I)

Left to the Executive Engineer to decide the pending representation on facts, in accordance with law. ¶ 1